

right to that performance. (See Carrancho v. California Air Resources Board, supra, 111 Cal.App.4th at 1265.)

Moreover, although not argued by Respondent, the first and third forms of relief prayed for by Petitioner are prohibitory in nature. As noted above, mandamus lies to compel the performance of some duty. In California, writs of prohibition are limited to the purpose of “arrest[ing] the exercise of judicial functions in excess of jurisdiction.” (Aronoff v. Franchise Tax Board (1963) 60 Cal. 2d 177, 181; see also CCP § 1102.) As such, the Court is without authority to construe the Petition as one for a writ of prohibition.

Respondent argues that Petitioner lacks standing to bring the instant action. “Where, as here, it is alleged that a party lacks standing to sue, the complaint can be challenged by general demurrer for failure to state a cause of action in this plaintiff.” (County of Fresno v. Shelton (1998) 66 Cal. App. 4th 996, 1009. [Emphasis in original.]) Respondent argues that Petitioner lacks standing because she “voluntarily relinquished ownership of the goats to a third party pursuant to a bargained-for settlement agreement....” (See Support Memo at 4:21-23. [Emphasis omitted.])

Petitioner specifically alleges in the Petition that she entered into a Settlement Agreement with Respondent. (See Petition at 2:4-6.) The Petition contains a section titled, “SUMMARY OF RELEVANT EVENTS.” (Id. at 3:15-16.) That section provides, in its entirety that “[a] detailed summary is contained within Counsel’s Declaration in Support of Petition, which is attached.” (Id. at 3:16-17.) Based on the foregoing, the Court reasonably concludes that the matters set forth in the Counsel’s Declaration attached to the Petition are incorporated into the Petition. Counsel’s Declaration alleges that “[o]n March 10, 2021, a Settlement Agreement (hereafter, ‘Agreement’) was reached between the County and Ms. Moffett (See Exhibit A attached: March 10, 2021 Agreement.” (Id. at Declaration of Susan Israel in Support of Petition at ¶ 2.)

The Court finds that Petitioner relinquished ownership of the goats by and through the terms of the Settlement Agreement. (See Petition at Exh. A, § C (1).) Pursuant to those terms, Petitioner had an exclusive right to regain ownership of the subject goats subject to specific conditions. (See id. at § C (2).) In the body of the Petition, however, Petitioner alleges that “she has been unable to meet the conditions of the Settlement Agreement....” (Id. at 2:15.)

Petitioner appears to concede that she lacks standing by failing to timely file any opposition to the demurrer. Based on the foregoing, the Court finds that Petitioner lacks standing as to the first and second forms of relief prayed for through the Petition.

Respondent next argues that it bears no ministerial duty to appoint a neutral, third-party inspector to inspect Ms. Moffett’s leased parcel. (Support Memo at 6:8-18.) As noted herein above, Petitioner failed to identify any such duty in the Petition and appears to concede the point by failing to timely file any opposition to the demurrer.

The only other form of potential writ relief that Petitioner prays for (other than costs, attorney’s fees, and the generic “such other relief as the Court may deem just and proper”) is “[t]hat this Court direct any Stay to remain in place during the pendency of this Petition.” (Petition at 3:27.) The only stay sought by Petitioner is one to prohibit Respondent from adopting or euthanizing Petitioner’s goats. As noted herein above, however, Petitioner does not have standing to petition for this type of relief, and it does not appear to be available through any form (mandamus or prohibition) of writ relief.

Based on the foregoing, Respondent’s demurrer is SUSTAINED.

It is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) However, the pleading party bears the burden of showing such reasonable possibility. (Ibid.) Here, the burden is on Petitioner to show in what manner she can amend the Petition and how that amendment will change the legal effect of the pleading. (Ibid; Medina v. Safe Guard Products (2008) 164 Cal.App.4th 105, 112 n.8; see also Heritage Pac. Fin’l, LLC v. Monroy (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].)

As noted herein, Petitioner failed to timely file any opposition to the demurrer. As such, Petitioner fails to show in what manner she can amend the Petition. The Court interprets this failure as a tacit admission that petitioner cannot articulate any such potential amendment. Moreover, the Court is unable to find, from reviewing the Petition itself, any reasonable possibility that Plaintiff can state a good cause of action for writ of mandamus. For the foregoing reasons, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

The clerk shall provide notice of this ruling to the parties forthwith. Respondent to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

Ptff/Pet: Ford Construction Company

Atty: Murphy Austin Adams Schoenfeld LLP

Def/Res: Gold Creek Homes & Development; Motherlode LLC; Old Golden Oaks LLC

Atty:

TENTATIVE RULING: Plaintiff Ford Construction Company, Inc. moves, pursuant to Code of Civil Procedure section 1281.2, for an order to compel arbitration and stay further proceedings in this action on the grounds that the written agreement at issue in the litigation contains a mandatory arbitration provision for which no exception applies.

California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*).) A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) Generally, on a motion to compel arbitration supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the Court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.) The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving by a preponderance any fact necessary to any defense raised. (*Ibid.*)

The Court finds that the claims set forth in the Complaint arise out of and relate to the terms of that certain written agreement by and between Plaintiff and Defendant Gold Creek Homes & Development LLC (Gold Creek). (See Complaint at ¶ 11, Exh. A.) That agreement contains an arbitration provision that provides as follows. "Any controversy or claim arising out of or relating to this Contract or its alleged breach, which can not [sic] be resolved by mutual agreement, shall be settled by arbitration in accordance with Construction Industry Rules of the American Arbitration Association in effect on the date of the Contract, and judgment upon the award rendered by arbitrator(s) may be entered in court in San Joaquin County, California." (Complaint at Exh. A, § 15.)

Based on the foregoing, the Court finds that Plaintiff has carried its burden of making a prima facie showing that the agreement exists and through it the parties have agreed to arbitrate the present controversy. (*Rosenthal v. Great Western Financial Sec. Corp.*, *supra*, 161 Cal.App.3d at 399.)

No opposition to the motion was timely filed. Therefore, there is no evidence before this Court of any defense to enforceability of the arbitration clause.

Based on the foregoing, plaintiff's motion is GRANTED. The parties are ordered to arbitrate the claims set forth in the Complaint. The present action is STAYED pending resolution of the arbitration. The Case Management Conference scheduled for 9/29/21 is continued to January 19, 2022, at 1:30 p.m. in Courtroom 1.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.